



Introduction to Negligence

A first guide for English students with no previous legal knowledge. Based on the uploaded lesson; the legal framework is England and Wales.

1. Start with a civil wrong

A **tort** is a civil wrong for which the law provides a remedy. A civil claim asks a court to resolve a legal dispute between people or organisations. **Negligence** is a tort concerned with failing to take legally required reasonable care and thereby causing legally recoverable harm.

The **claimant** brings the claim. The **defendant** is the person or organisation being sued. **Liability** means legal responsibility. A negligence claim commonly seeks **damages**: money awarded as compensation. It is not, by itself, a criminal prosecution.

Working definition: negligence involves a breach of a duty to take reasonable care, causing damage that the law allows the claimant to recover. This is a learning definition, not a quotation from a textbook.

2. Carelessness is a starting point, not the whole claim

In everyday English, “negligent” often means careless. In law, saying “that was careless” is not enough. The claimant must establish the required legal elements. Nor does every accident show that somebody failed to take reasonable care.

3. The equation of negligence

The lesson groups the subject into **duty + breach + resulting damage**. For analysis, it helps to separate the final part into causation and damage:

Duty: did the defendant owe this claimant reasonable care?

Breach: did the defendant fail to meet that standard?

Causation: did that failure cause the relevant harm?

Damage: is there actual harm of a legally recoverable kind?

These are legal questions, not a mathematical formula. Having a duty does not prove a breach; a breach does not by itself prove that it caused the claimant's loss. Rules about the scope of liability and remoteness also limit what can be recovered.

Language note: damage means harm or loss; damages usually means monetary compensation. Negligence requires actual damage. Do not assume that every other tort has exactly the same requirements.



One example, four questions

The following supermarket example and its variations are invented for learning. They illustrate the questions; they are not reported court decisions.

A supermarket worker leaves a large puddle of water in a busy aisle. Staff know it is there, have ample time to act, but neither remove it nor protect customers from it. Mei slips on the water and breaks her wrist.

4. Duty: who should take care of whom?

A supermarket operating premises for customers must take reasonable care for their safety under the relevant premises-liability rules. [3] For this exercise, assume that it owes Mei the relevant duty. A duty requires reasonable precautions, not a promise that nobody will ever be injured.

5. Breach: what should have been done?

Breach means failure to fulfil the duty. Ask what reasonable care required in the circumstances. The known puddle, the busy aisle and the time available matter. Removing the water or keeping customers away while it is cleaned may be reasonable precautions. A warning is not necessarily enough in every situation.

6. Causation: what made the injury happen?

Causation is the link between the breach and the harm. A useful starting question is: **but for** the failure to deal with the puddle, would Mei have suffered this injury? If she would not, that supports factual causation. More difficult cases require further rules; this question is not the answer to every causation problem.

Then ask about the legal limits on responsibility. **Remoteness** concerns whether the harm is too remote in law to recover. It does not simply mean that the claimant was geographically far away.

7. Damage: what was actually lost?

Mei has a physical injury. Supported losses flowing from that injury may include treatment expenses and lost earnings. The court needs evidence of the injury, its connection to the breach and the amount claimed.

Change the facts:

No injury or loss: Mei sees the puddle and safely walks around it. A risk alone does not establish her negligence claim.

No causal link: she trips over her own untied shoelace elsewhere. The unrelated puddle does not explain that fall.

No proven breach: water is spilled moments before the fall. Investigate whether staff had a reasonable opportunity to discover and address it.



Intent, importance and cases

8. Must the defendant intend to cause harm?

No. Negligence does not require an intention to injure. A worker may deliberately carry a bucket but accidentally spill its water. The activity can be intentional while the resulting harm is unintended. Focus on the duty, the standard of care and the consequences.

Do not define negligence simply as “the opposite of intention”. Deliberately choosing an unsafe course can still raise a negligence issue. The absence of an intention to harm is not a defence to failing to take reasonable care.

9. Why study negligence?

It provides a framework for many disputes involving injury and loss. Its rules have developed through **common law**: legal principles developed in court decisions. Legislation also matters. The history did not begin only in the late twentieth century; the first case below was decided in 1932.

Donoghue v Stevenson [1932] AC 562 [1]

Facts alleged: Mrs Donoghue said that ginger beer bought for her by a friend contained a decomposed snail and made her ill. She had no contract with the manufacturer, Stevenson. This Scottish case shaped English negligence law.

Lesson: a manufacturer could owe care to an ultimate consumer in the circumstances identified by the court. A duty in tort can exist without a contract between the parties.

Who won, and why? Mrs Donoghue won her appeal. The absence of a contract did not bar her negligence claim, which could proceed to proof. The House of Lords did not then establish all the alleged facts or award final compensation.

Robinson v Chief Constable of West Yorkshire Police [2018] UKSC 4 [2]

Police officers attempting an arrest collided with a nearby pedestrian, Mrs Robinson, who was injured. The case concerned harm caused by their conduct, rather than a general failure to protect somebody from crime.

Who won, and why? Mrs Robinson won. The Supreme Court held the Chief Constable liable: the officers owed reasonable care, breached that duty and caused her injury. There was no general police immunity. The case was sent back to assess the amount of damages.

Reading lesson: Donoghue allowed a claim to continue; Robinson established liability and left the amount to be assessed. “Won the appeal” does not always describe the same procedural result.



Check your understanding

Try each question before reading its answer. The aim is to explain the links, not just repeat the equation.

1. Name the four questions in our learning framework.

Answer: Duty, breach, causation and legally recoverable damage. The lesson groups causation and damage under “resulting damage”.

2. Does a duty of care guarantee that no accident will occur?

Answer: No. It requires reasonable care. An accident can happen even when that standard is met.

3. Must Mei prove that the supermarket wanted her to fall?

Answer: No. An intention to cause harm is not an element of negligence.

4. If staff leave a puddle but Mei suffers no injury or loss, is her negligence claim complete?

Answer: No. A dangerous situation alone does not establish actual damage to her.

5. Mei trips over her shoelace elsewhere. What is missing from the puddle argument?

Answer: A causal link between the alleged failure to deal with the puddle and her injury.

6. Did Donoghue receive final damages in the 1932 decision?

Answer: No. She won the appeal allowing her claim to proceed; the alleged facts still required proof.

7. Who won Robinson, and what remained to be decided?

Answer: Mrs Robinson won on liability. The amount of damages remained to be assessed.

Sources and further reading

Primary judgments checked 4 October 2026. The everyday examples are invented.

[1] **Donoghue v Stevenson [1932] AC 562**. House of Lords, 26 May 1932. Lord Atkin's speech and the decision to allow proof; judgment copy held by the University of Trier. [Read judgment](#)

[2] **Robinson [2018] UKSC 4**. UK Supreme Court, 8 February 2018. Paras 21-30: established principles; paras 68-81: duty, breach, causation and outcome. Official judgment. [Read judgment](#)

[3] **Occupiers' Liability Act 1957, s 2**. Reasonable care for visitors and the effect of warnings. [Read legislation](#)